IN THE SUPERIOR COURT OF DEKALB COUNTY
STATE OF GEORGIA

[redacted] L. [redacted],

Plaintiff,

v.

FIRST ACCEPTANCE INSURANCE COMPANY OF GEORGIA, INC. et al.

Defendant.

Civil Action File No. 25CV10635

DEFENDANT FIRST ACCEPTANCE INSURANCE COMPANY OF GEORGIA, INC. RESPONSE TO PLAINTIFF'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS

COMES NOW, Defendant FIRST ACCEPTANCE INSURANCE COMPANY OF GEORGIA, INC. et al. ("Defendant") in the above styled action by and through the undersigned counsel of record, and hereby serves its Responses to [redacted] L. [redacted] ("Plaintiff"), *REQUESTS FOR PRODUCTION,* and states as follows:

PRELIMINARY STATEMENT

1. The following objections and responses are based upon information presently and personally available to Defendant which is believed to be correct. Said objections and responses are made without prejudice to Defendant's right to utilize subsequently discovered facts.

2. No incidental or implied admissions of fact by Defendant are made by the answers and responses below. The only admissions are express admissions. The fact that Defendant has answered any Interrogatory or Request herein may not properly be taken as an admission that Defendant accepts or admits the existence of any facts set forth or assumed by such Interrogatories or Requests, or that such answer or response constitutes admissible evidence. The fact that Defendant has answered part or all of any Interrogatory or Request is not intended to be, and shall

not be construed as, a waiver by Defendant of all or any part of an objection made by Defendant to any Interrogatory or Request.

3. Answers and responses to these Interrogatories and Requests may be amended or supplemented upon Defendant's further investigation and acquisition of information which Defendant does not either possess or recall at this time, strictly in accordance with O.C.G.A. § 9-11-26(e).

4. Defendant objects to the "Instructions" included in her discovery requests as purporting to alter or expand Defendant's rights and obligations under the Civil Practice Act. Defendant's objections and responses will follow and comport with the Civil Practice Act.

5. This preliminary statement is incorporated into each of the answers and responses set forth below.

RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION

1.

The complete underwriting file for the Policy, including all applications, quotes, rating worksheets, endorsements, declarations pages, and internal notes.

RESPONSE: Defendant objects to this Request on the grounds that it is overly broad and not reasonably calculated to lead to the discovery of admissible evidence in that Defendants complaint does not allege that the at issue policy was not issued or not in effect or even that defendant deviated from the declarations set forth in the policy in affording coverage, but rather merely that an agent signed the policy on Plaintiff's behalf. Plaintiff has already admitted to the existence of the policy, having both paid premiums and making claims under. Defendant further objects to this request as unduly burdensome as Plaintiff in Paragraph 21 of her Complaint freely admits to already being in possession of such documentation.

Defendant further objects to this request to the extent it seeks documentation protected by the work product doctrine. Subject to and without waiving the forgoing objection, Defendant responds as follows: Defendant does not dispute that the documents contained in pages 78-80 of Plaintiff's Complaint accurately reflect the coverage afforded by the Subject Policy.

2.

The complete claims file for any claim arising from the January 28, 2024 collision, including all adjuster notes, communications, coverage determinations, and denial documentation.

RESPONSE: Defendant objects to this Request on the grounds that it is overly broad and not reasonably calculated to lead to the discovery of admissible evidence in that there is no dispute that Plaintiff's policy was a liability only policy and the denial of the first-party property damage claim which is the nexus of Plaintiff's Complaint was not covered under the policy. Defendant further objects to this request to the extent it seeks documentation protected by the work product doctrine.

3.

All documents evidencing the settlement agreement referenced in Your Third Defense.

RESPONSE: See Plaintiff's Complaint.

4.

All documents supporting each affirmative defense asserted in Your Answer

RESPONSE: Defendant objects to this Request, as it is premature to the extent it seeks documents supporting legal theories that may be further developed through discovery and expert analysis. Defendant also objects to the extent this request seeks documents protected by the attorney-client privilege or work product doctrine, as such documents were prepared in anticipation of litigation.

5.

Every document that was sent by electronic mail or electronic signature platform to any person named in Interrogatory 3, or to any agent at the Milledgeville Location, and then signed by that person or agent, from January 1, 2020 to the present — including for each the complete envelope record, the audit trail, and the certificate of completion, produced in native format with all metadata intact

RESPONSE: Defendant objects to this request on the grounds that it is overly broad and unduly burdensome and is not reasonably calculated to lead to the discovery of admissible evidence as (i) this requests seeks document that have no relation to the claims set forth by Plaintiff's Complaint; and (ii) Plaintiff's allegations relate to an agent operating out of a location in [redacted] not Milledgeville. Defendant further objects on the basis that this request is not resonantly temporally limited in that it seeks documentation predating Plaintiff's Claims by more than 4 years. Subject to and without waving the foregoing objections Defendant responds as follows: At no relevant time was the Milledgeville Location under the control or operation of Defendant.

6.

All documents identifying the account holder, contracting entity, billing entity, administrators, and authorized users of the DocuSign Account from January 1, 2020 to the present, including the DocuSign service agreement and all invoices.For each person named in Interrogatory 3: the complete human resources and personnel file, including application, offer letter, job description, all performance reviews, all disciplinary records and corrective actions, all internal complaints, all compensation and commission records, and all separation documentation, from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request because it is compound, seeking multiple distinct categories of documents in violation of the rule against compound discovery. Defendant further objects because the request is overly broad and not reasonably calculated to lead to the discovery of admissible evidence. Defendant further objects to this request as not reasonably limited in temporal scope as it seeks documents dated more than 4 years prior to events complained of by Plaintiff. Subject to and without waiving the foregoing objections Defendant responds as follows: Defendant is not in possession of any such documents related to Huff or the Milledgeville location.

7.

For each person named in Interrogatory 3: all employment agreements, independent contractor agreements, producer agreements, appointment agreements, and commission agreements, together with every amendment, in effect at any time from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request as not reasonably calculated to lead to the discovery of admissible evidence as personnel records have no bearing on Plaintiff's Claims. Defendant further objects on the basis that this request is not reasonably temporally limited in that it seeks records predating the events complained of by Plaintiff by more than 4 years. Subject to and without waiving the foregoing objection Defendant responds as follows: Interrogatory #3 does not provide the name of any individual. At no relevant time did Defendant employee any individual who worked at the location Huff worked.

8.

For each person named in Interrogatory 3: all documents stating that person's insurance agent number, producer code, license number, appointing insurer, work location, job title, dates of tenure, and reporting line.

RESPONSE: Defendant objects to this request as not reasonably calculated to lead to the discovery of admissible evidence as personnel records have no bearing on Plaintiff's Claims. Subject to and without waiving the forgoing objections Defendant responds as follows: Interrogatory #3 does not provide the name of any individual. At no relevant time did Defendant employee any individual who worked at the location Huff worked.

9.

Produce all licensing, registration, appointment, personnel, and disciplinary records for Elena Garro and Farah Aghaei-Ardekani in every state in which either holds or has held an insurance license, registration, or appointment, together with any complaint or disciplinary matter concerning either person in any state.

RESPONSE: Defendant objects to this request as not reasonably calculated to lead to the discovery of admissible evidence as personnel records-particularly those dealing with other states-have no bearing on Plaintiff's Claims. Defendant further objects to this request as not reasonably calculated to lead to the discovery of admissible evidence on the basis that Plaintiff's Complaint alleges a forgery alleged to have been committed by Huff, the two individuals named in this interrogatory have no relationship to allegations of Plaintiff's Complaint.

10.

All organizational charts, reporting structures, and supervisory assignment records covering the Milledgeville Location and every person named in Interrogatory 3, from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request in that it is not reasonably calculated to lead to the discovery of admissible evidence. Defendant further objects to this request on the basis that it is not reasonably limited in temporal scope in that it seeks documents which predated the isolated incident alleged by Plaintiff by more than four years. After diligent search Defendant is not in possession of responsive documentation.

11.

All documents reflecting every system, platform, application, and service identified in response to Interrogatory 13, including all contracts, statements of work, and invoices for each, and all documents identifying the legal entity that contracted for and paid for each.

RESPONSE: See response to Interrogatory 13.

12.

All documents reflecting administrative rights, permission profiles, group assignments, and user provisioning within the DocuSign Account from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request as it is not reasonably limited in temporal scope in that it seeks documents predating the events complained of by Plaintiff by more than 4 years. Defendant further objects to this requests as not reasonably calculated to lead to the discovery of admissible evidence. Subject to and without waiving the forgoing objection Defendant responds as follows: after diligent search Defendant is not in possession of responsive documentation relating to Huff or the Milledgeville Location.

13.

All documents relating to the transfer of DocuSign envelope ownership by any person, including all instructions, authorizations, and communications concerning any such transfer, and all records reflecting the current ownership, status, and location of the transferred envelopes.

RESPONSE: Defendant objects to this Request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence as Plaintiff has alleged and Defendant does not dispute that "if" a forgery did occur, it was committed by Huff. Subject to and without waiving these objections Defendant responds as follows after diligent search Defendant is not in possession of responsive documentation relating to Huff or the Milledgeville Location.

14.

All standard, scheduled, automated, or system-generated reports identified in response to Interrogatory 18, including specimen copies of each report as generated during calendar years 2023 and 2024, and all documents establishing the thresholds, rules, and distribution lists applied to each.

RESPONSE: See Defendants Response to Interrogatory No. 18.

15.

All documents reflecting any alert, flag, exception, or anomaly generated by any system concerning electronic signature activity, envelope completion times, or shared Internet Protocol addresses, from January 1, 2020 to the present

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, not reasonably calculated to lead to the discovery of admissible evidence and not reasonably temporally limited in that it seeks information predating Plaintiff's Claims by more than 4 years. Defendant further objects to this request to the extent it attempts to

compel Defendant to create reports and documentation not currently in existence. Subject to and without waiving these objections, Defendant responds as follows: after diligent search Defendant is not in possession of such documents of Huff or the Milledgeville location.

16.

All documents submitted by You or any entity named in Definition A to the Georgia Office of Commissioner of Insurance and Safety Fire from January 1, 2020 to the present concerning any person named in Interrogatory 3, the Milledgeville Location, the Policy, or electronic signature practices, together with all drafts and all internal communications concerning those submissions.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence. Defendant further objects to this request to the extent it attempts to compel Defendant to create reports and documentation not currently in existence. Defendant further objects to this request on the basis that by definition it is seeking to compel Defendant to produce records in the custody of others.

17

All documents relating to any complaint, inquiry, investigation, or report received from the Georgia Office of Commissioner of Insurance and Safety Fire from January 1, 2020 to the present, including any response prepared by or on behalf of Defendant. All documents relating to any market conduct examination, investigation, consent order, cease-and-desist order, or enforcement action by the insurance regulator of any state against You or any entity named in Definition A, from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence

in that it seeks information concerning other claims not related in any manner to this suit. Defendant further objects that this request is solely made for purposes of harassment as the only documents that would be conceivably calculated to lead to the discovery of admissible evidence in this matter are those reports made by Plaintiff herself-for which Plaintiff would already be in possession. Defendant further objects to this request as not reasonably limited in temporal scope as it seeks information predating the events complained of by Plaintiff by more than 4 years. Defendant further objects to this request to the extent it attempts to compel Defendant to create reports and documentation not currently in existence. Defendant further objects to this request on the basis that by definition it is seeking to compel Defendant to obtain and produce records in the custody of others.

18

All documents relating to any customer complaint, inquiry, chargeback request, or cancellation request in which the customer stated that they did not authorize, request, or sign for a policy, limited to policies issued in the State of Georgia, from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence in that it seeks information concerning other "insureds" not related in any manner to this suit. Defendant further objects to this request as not reasonably limited in temporal scope as it seeks information predating the events complained of by Plaintiff by more than 4 years. Defendant further objects to this request to the extent it attempts to compel Defendant to create reports and documentation not currently in existence.

19.

All contracts, agreements, addenda, and amendments between You and AITN in effect at any time from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence. Defendant also objects to the extent the request seeks personnel records or information protected by privacy laws or confidentiality obligations. Subject to and without waving the forgoing objections, AITN is a separate entity of which FAGA has no custody, ownership or control over. There are no "effective" (as Defendant understands this descriptor) documents between FAGA and AITN that in anyway conceivable relate to this matter.

20.

All documents concerning the sale of AITN sufficient to show the purchase agreement and its schedules; any representation, warranty, or indemnification provision concerning claims, fraud, litigation risk, or regulatory exposure; and any schedule identifying employees, licenses, appointments, systems, or customer accounts transferred.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence. Defendant also objects to the extent the request seeks information protected by privacy laws or confidentiality obligations. Subject to and without waving the foregoing objections Defendant responds as follows: The referenced sale was widely reported upon by reputable financial publications and new sources and can be readily and easily confirmed by less invasive means

21.

All documents reflecting shared services, shared systems, shared employees, or intercompany allocations between You and AITN.

RESPONSE: Defendant objects to this request because it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence in that Plaintiff's Complaint does not even allege a shared enterprise between Defendant and AITN. Defendant also objects to the extent the request seeks information protected by privacy laws or confidentiality obligations. Subject to and without waiving the foregoing objections Defendant responds as follows: FAGA and AITN are entirely separate business, with entirely separate business operations each with their own systems, accounts and employees.

22.

All documents reviewed or relied upon by Donald Kaiser in preparing the affidavit filed in support of Defendant's Motion to Dismiss.

RESPONSE: Donald Kaiser did not rely on any specific document in making his affidavit but rather on his general knowledge gained through his employment and time spent in his current role at the time the affidavit was made.

23.

All Special Investigation Unit files, fraud referrals, fraud investigation records, and anti-fraud plan records concerning Toneshia Simmons-Huff, any person named in Interrogatory 3, the Milledgeville Location, the Policy, or electronic signature practices, from January 1, 2020 to the present.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence as the "Milledgeville Location" as defined by Plaintiff has absolutely no relation to the events

or locations complained of by Plaintiff's Complaint. Defendant further objects to this request to the extent it attempts to compel Defendant to create reports and documentation not currently in existence. Subject to and without waving the foregoing objection Defendant Responds as follows: Defendant is not in possession of any documents that relate to Huff or the Milledgeville Location for the time period relevant to Plaintiff's Claims.

24.

All internal investigation, compliance review, and audit files concerning the termination or cancellation of the agent appointment of Toneshia Simmons-Huff, including all documents reviewed, all findings, and all recommendations.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence as to the extent such events occur as contended by this request such events occurred after the events complained of by Plaintiff and in no way lead to the events complained of by Plaintiff.

25.

All notices of termination, appointment cancellation, or termination-for-cause filings submitted by You or any entity named in Definition A to the Georgia Office of Commissioner of Insurance and Safety Fire, the National Insurance Producer Registry, or the National Association of Insurance Commissioners concerning any person named in Interrogatory 3, together with the stated reason and reason code for each.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence. Defendant also objects to the extent the request seeks personnel records or information protected by privacy laws or confidentiality obligations. Defendant further objects to this

request to the extent it attempts to compel Defendant to create reports and documentation not currently in existence. Defendant further objects to the extent this request seeks to compel Defendant to obtain and produce documents that are definitionally in the possession of others. Subject to and without waiving the foregoing objections Defendant responds as follows: after diligent search Defndant is not in possession of any such documents related to Huff.

26.

All communications with any other insurer, managing general agent, or industry body concerning Toneshia Simmons-Huff or any person named in Interrogatory 3.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence as Defendant correspondence with other third party's has absolutely no relation to Plaintiff's claims.

27.

All internal communications, in any medium, referring to [redacted], the Policy, the Disputed Envelope, and any claim, complaint, inquiry, or dispute arising from any of them, from January 1, 2024 to the present.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence, Plaintiff's Complaint does not allege wrongdoing on behalf of internal communication but rather that her signature was forged on a policy which she freely participated in applying for, expected to be issued, made payments towards, made claims against, and received the benefit of claims payments resolving third party claims against her. Defendant further

objects to this request to the extent it seeks information protected by the work product doctrine and attorney client privilege.

28.

All internal communications referring to electronic signatures applied by agents on behalf of customers, agent signature practices, or DocuSign compliance, from January 1, 2020 to the present, limited to (a) communications sent or received by any person named in Interrogatory 3, and (b) communications concerning the Milledgeville Location.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence as among other things, the Milledgeville Location appears to have no relation to Plaintiff's Claims. Defendant further objects to this request to the extent it attempts to compel Defendant to create reports and documentation not currently in existence. Subject to and without waiving the foregoing objections Defendant responds as follows: After Diligent search defendant is not in possession of responsive documents as relating to Huff or the Milledgeville location.

29.

All documents reflecting the cancellation of the agent appointment of Toneshia Simmons-Huff.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence in that it has no bearing on the allegations of Plaintiff's Complaint.

30.

All documents identifying every person named a "Top 100 Agent" or given any comparable recognition by You or any entity named in Definition A from January 1, 2020 to the present, together with all documents establishing the program and the criteria applied in each year.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence as it seeks information relating to up to 100 agents that have no relation to Plaintiff's Complaints. Defendant also objects to the extent the request is not reasonably limited in temporal scope in that it seeks documentation predating the events complained of by Plaintiff by more than 4 years.

31.

All training materials, manuals, bulletins, and written policies or procedures provided to appointed agents concerning the use of electronic signature platforms.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence.

32.

All documents concerning endorsement form GAS-126, including when it was adopted, to which policies it is applied, and any disclosure provided to insureds regarding it.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence Plaintiff has not alleged in wrong doing in the underwriting of the policy but rather merely forgery of the signature on the policy application.

33.

All documents reflecting any email address, telephone number, or mailing address on file for [redacted] of January 19, 2024.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence Plaintiff has not alleged that Defendant did not have the incorrect policy information for Plaintiff but rather that a third party agent forged her signature on a policy she freely participated in applying for, expected to have issued, made payments towards, made claims under and received the benefit of via settlement of claims against her.

34.

All documents reflecting the receipt, deposit, and disposition of the $366.30 payment made in connection with the Policy.

RESPONSE: Defendant objects on the grounds that this request is not reasonably calculated to lead to the discovery of admissible evidence in that no party has disputed that Plaintiff made payments under the at issue policy.

35.

All document retention policies and litigation hold notices issued in connection with this action.

RESPONSE: Defendant objects to this request on the grounds that it is overbroad, unduly burdensome, and not reasonably calculated to lead to the discovery of admissible evidence. Defndant further objects to the extent that this request seeks information protected under the attorney client privilege and work production doctrine. Defendant further objects to this request to the extent it attempts to compel Defendant to create reports and documentation not currently in existence.

36.

Every document you intend to introduce, use, rely on, or refer to at trial in this matter, or at any hearing or in support of any motion.

RESPONSE: **Defendant objects to this request as it is premature as discovery is ongoing and Defendant has not yet determined the full scope of documents that may be introduced or relied upon at trial or in future proceedings. Defendant further objects as this request seeks documents that are protected by the attorney-client privilege and/or work product doctrine. Defendant reserves the right to rely on any and all documents produced by either party in the course of discovery at trial.**

Respectfully submitted this the 19th day of October, 2026.

/s/ Cameron Edward Jackson
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CERTIFICATE OF SERVICE

I hereby certify that copies of DEFENDANT FIRST ACCEPTANCE INSURANCE COMPANY OF GEORGIA, INC'S REQUESTS FOR PRODUCTION were filed with the Clerk of Court using the online e-file system which will automatically serve all parties of record as follows:

[redacted], GA
[redacted]@gmail.com

Respectfully submitted this 19th, day October, 2026

/s/ Cameron Edward Jackson
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